

HOUSE BILL 1109

By Salinas

AN ACT to amend Chapter ___ of the Public Acts of 2025 (1st Ex. Sess. – SB 6001 / HB 6004); and Tennessee Code Annotated, Title 49, Chapter 10, Part 14 and Title 49, Chapter 6, Part 26, relative to background checks.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter ___ of the Public Acts of 2025 (1st Ex. Sess. – SB 6001 / HB 6004), is amended by adding the following at the end of Section 2:

49-6-3513. Background checks for persons holding positions requiring proximity to recipients in private schools.

(a) A private school that enrolls a recipient shall conduct a criminal history records check:

(1) Prior to employment for any person applying for or holding a position as a teacher or any other position requiring proximity to school children; and

(2) Prior to permitting any person or an employee of the person, corporation, or any other entity under contract with the private school and who will have direct contact with school children or access to the grounds of the school when children are present.

(b) The criminal history records check must be fingerprint based or social security number based and include a check of the state and national sex offender registries and the department of health's abuse registry.

(c) A private school that enrolls a recipient shall search the state's educator licensure database to determine if an applicant for a teaching position or any other

position requiring proximity to school children has ever had an educator license suspended or revoked for misconduct in this state.

SECTION 2. Tennessee Code Annotated, Section 49-6-2607(e), is amended by deleting subdivisions (4) and (5) and substituting:

(4) Conduct a criminal history records check that is fingerprint based or social security number based and that includes a check of the state and national sex offender registries and the department of health's abuse registry:

(A) Prior to employment for any person applying for or holding a position as a teacher or any other position requiring proximity to school children; and

(B) Prior to permitting any person or an employee of the person, corporation, or other entity under contract with a participating school and who will have direct contact with school children or access to the grounds of the school when children are present;

(5) Search the state's educator licensure database to determine if an applicant for a teaching position or any other position requiring proximity to school children has ever had an educator license suspended or revoked for misconduct in this state; and

(6) Exclude from employment:

(A) Any person who is not permitted by state law to work in a nonpublic school; and

(B) Any person who might reasonably pose a threat to the safety of students.

SECTION 3. Tennessee Code Annotated, Section 49-10-1404(b), is amended by deleting subdivision (3) and substituting:

(3) Conduct a criminal history records check that is fingerprint based or social security number based and that includes a check of the state and national sex offender registries and the department of health's abuse registry:

(A) Prior to employment for any person applying for or holding a position as a teacher or any other position requiring proximity to school children; and

(B) Prior to permitting any person or an employee of the person, corporation, or other entity under contract with a participating school and who will have direct contact with school children or access to the grounds of the school when children are present;

(4) Search the state's educator licensure database to determine if an applicant for a teaching position or any other position requiring proximity to school children has ever had an educator license suspended or revoked for misconduct in this state; and

(5) Exclude from employment:

(A) Any person who is not permitted by state law to work in a nonpublic school; and

(B) Any person who might reasonably pose a threat to the safety of students.

SECTION 4. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.